

Chapter 750

OFFENSES AGAINST PROPERTY

§ 750-1. Trespass.

[HISTORY: Adopted by the County Council of Allegheny County 8-25-2020 by Ord. No. 19-20.¹ Amendments noted where applicable.]

§ 750-1. Trespass.

- A. A person commits a summary offense if, knowing that he is not licensed or privileged to do so, he enters or remains in any place as to which notice against trespass is given by the placement of identifying purple paint marks on trees or posts on the property which are:
 - (1) Vertical lines of not less than eight inches in length and not less than one inch in width;
 - (2) Placed so that the bottom of the mark is not less than three feet from the ground nor more than five feet from the ground; and
 - (3) Placed at locations that are readily visible to a person approaching the property and no more than 100 feet apart.
- B. This section shall not apply to any unarmed person who enters onto posted property for the sole purpose of retrieving a hunting dog, guide or other assistance animal, or pet.
- C. Upon conviction of a first offense as defined within this section, a person shall be punished by a fine of not more than \$200. Upon conviction of a second or subsequent offense, a person shall be punished by a fine of not more than \$300 and/or a term of imprisonment of not more than 90 days.
- D. For the purposes of this section, each day upon which a violation occurs shall constitute a separate offense.
- E. No portion of this section shall be read or interpreted to alter, enlarge, limit, or in any way impact rights and/or remedies otherwise available to property owners under the terms of any commonwealth statute applicable within Allegheny County, including 18 Pa.C.S.A. § 3503 (relating to criminal trespass).

1. Editor's Note: This chapter, adopted as Ch. 775, was renumbered to fit the organization of the Code.